



The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

MINUTES of the MEETING
Monday, October 23, 2023, at 7:00 PM

The Westhampton Selectboard scheduled a regular meeting to be held on Monday, October 23, 2023, at 7:00 PM at the Town Offices, 1 South Road.

Call to Order

The meeting was called to order at 7:00 PM.

Present: Dempsey, Bronstein, Johndrow

Also present: Douglas Finn, others as noted.

7:00 PM – Tax Classification Hearing

In accordance with Section 56 of Chapter 40 of the General Law, the Westhampton Selectboard will conduct a public hearing on the question of adoption of percentages of the total tax levy to be borne by each class of real property (residential, open space, commercial, industrial) and personal property for Fiscal Year 2024. The hearing will be held on Monday, October 23, 2023, at 7:00 PM. All interested parties are invited to attend and will be heard.

Presentation

Present: Assessors Walter Morrey, Marilyn Witherell, Assessors Clerk David Zagorski.

Mr. Zagorski reviewed the recommendations of the Assessors (prepared document included in meeting materials).

After brief discussion and presentation, the Board of Assessors formally recommended that, for FY2024, Westhampton adopt

- A Single Tax Rate for all classes of property;
- No Open Space Discount;
- No Residential Exemption; and
- No Small Commercial Exemption.

There was no public comment. No written comment was received.

There being no further deliberation, the public hearing was CLOSED at 7:04 PM.

It was MOVED by Bronstein SECONDED by Johndrow

To adopt a single tax rate for all classes of property, with no open space discount, no residential exemption and no small commercial exemption.

VOTED: 3, 0, 0 (7:04 PM)

Department Reports

MVP / Master Plan

Ms. Teri Anderson spoke on behalf of the MVP Master Plan Committee, and asked about the implementation of the Master Plan.

She noted that the MVP group had agreed that representatives from town boards would be invited to participate on the implementation committee. The next step would be for the Selectboard to appoint members to the committee, to oversee the implementation of the work. Ms. Anderson noted that community members would be interested in taking part, or helping to implement the

various portions of the committee work.

Ms. Dempsey noted that the board would take some time to review the implementation plan and would make appointments in the near future.

Highway

Mr. Jablonski reported recent work, including mowing, trench and cistern cleaning, prep of snow-removal equipment, some assistance to the Fire Department and the School Department, as well as other tasks.

Ms. Dempsey asked if there were a lot of calls from the school. Mr. Jablonski noted that it was a relatively cooperative arrangement, noting that the town uses a significant amount of

Mr. Dowling noted that there was at one time a maintenance committee for the town, and recommended reformation of that committee.

Ms. Dempsey suggested that the capital maintenance committee might take part in helping to assess and prioritize capital maintenance projects.

Mr. Jablonski also noted that residents needed to be reminded that lawn signs – as well as commercial signs - did not belong in the public right of way.

Mr. Dowling volunteered to continue on the capital planning committee, and expressed his interest in being on the maintenance committee.

Mr. Johndrow noted his interest in insuring that Maintenance Committee members have professional backgrounds in trades, and the skills to review and assess building needs.

Health

Ms. Katch Bachelor noted that the Flu and Covid Vaccination event at the Town Hall scheduled for earlier that day went very well and was well attended. She added that the town has received a free Narcan kit, and Board of Health member Ms. Bri Eichstadt has offered to conduct training in the use of Narcan to town employees. Finally, she noted that there was a lot of ongoing activity at this time, and her next report would be more substantial.

Old Business

Update - Library Roof repairs

Mr. Finn noted that

- the Library Trustees approved the proposal for the short-term repairs.

- the contract with Stone Mountain roofing is signed.

- the Building Inspector (Wally) will coordinate with Stone Mountain to oversee the work.

Mr. Finn also noted that Mr. Jim Mailloux had been contacted to make a site visit to the library to review the lighting issues, and to provide a scope of work for repairs, and an estimate of costs.

Mr. Phil Dowling noted that it was possible that Eversource might take responsibility for the repairs for the lighting, but more information is anticipated.

New Business ¹

Special Town Meeting Warrant with Motions

Mr. Finn presented draft motions for the Special Town Meeting on November 6 for review. There was some discussion as to the format, and who might offer the motions. Mr. Finn will contact Ms. Jennifer Milikowsky (Planning Board chair) to inquire as to whether she would be in attendance, and willing to make the motion for the Zoning Bylaw Change article.

¹ New Business may include items not reasonably anticipated 48 hours in advance of meeting.

Assistant Tax Collector

Mr. Finn noted receipt of a request from Ms. Patty Cotton for appointment of an Assistant Tax Collector, to serve in her absence as needed. Mr. Finn noted that the salary for the assistant would be paid from the salary appropriation for the Collector, so no new appropriation is requested or needed.

After brief discussion, it was MOVED by Johndrow, SECONDED by Bronstein

To appoint Mr. Joe Pipcynski to the position of Assistant Tax Collector. This appointment is considered an emergency and an interim appointment.

VOTED: 3, 0, 0 (7:40 PM)

Administrative

Review Other Correspondence

Mr. Finn noted he was in receipt of the plant map from Comcast, showing the cable lines on Westhampton Streets, and that it was being reviewed. No other correspondence had been received.

Review and Sign: Payroll and A/P Warrants: W24-09, WP24-09

After review, it was MOVED by Johndrow, SECONDED by Bronstein

To approve Warrants W24-09 and WP24-09 as presented.

VOTED: 3, 0, 0 (7:45 PM)

Review and Sign: Minutes from Previous Meetings

After review, it was MOVED by Bronstein, SECONDED by Johndrow

To approve the minutes of October 10, 2023 as presented and amended

VOTED: 3, 0, 0 (7:46 PM)

Set date for next meetings –

The next regular meeting would be on November 6, at 5:30 PM, in order to approve warrants and coordinate Special Town Meeting work. Following that meeting, the next regular meeting would be on November 20, 2023.

Executive Session – if needed or requested

It was MOVED by Johndrow, SECONDED by Bronstein

To enter into executive session to discussion ongoing or past litigation, as discussion of matters in open session would be detrimental to the Town, to invite Mr. Phil Dowling to participate, and to leave Executive Session only to adjourn the meeting.

VOTED: DEMPSEY: YES; JOHNDROW: YES; BRONSTEIN: YES.

The board entered into Executive Session at 7:48 PM.

EXECUTIVE SESSION MINUTES FOLLOWS (1 page)

EXECUTIVE SESSION MINUTES:

Mr. Dowling presented to the board general information on the background and status of a number of legal issues. Many were concluded, but some may still be ongoing, including:

- ATHANASIOU – relative to the ownership of the “Triangle” of land at the intersection of North Road, Southampton Road, and Perry Hill Road.
- COTTON / FONDAKOSKI – relative to a proposed commercial sawmill and stump-grinding services, and an appeal made by an abutter.
- OUTLOOK FARM – various issues over time relative to farmers pouring license renewal, and a failure to renew.
- JAWS / MARCHAND / SACHARCZYK – various efforts to limit expansion or close down a vehicle salvage yard operating in violation of the zoning bylaws.

There was extensive discussion related to the various matters, but no votes taken, and no decisions made in regard to any given matter.

END OF EXECUTIVE SESSION MINUTES (1 page)

ADJOURNMENT

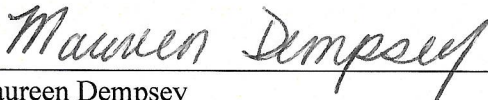
It was MOVED by Johndrow SECONDED by Bronstein

To leave executive session and to adjourn.

VOTED: DEMPSEY: YES; JOHNDROW: YES; BRONSTEIN: YES. (8:37 PM)

Respectfully submitted,
Douglas C. Finn

Approved by a vote of the Selectboard at a regular meeting, held on November 6, 2023.



Maureen Dempsey



Scott Johndrow



Susan Bronstein